



All Engineer

Anti-Bribery and Anti-Corruption Policy (ABAC)

Version 1.2

Table of Contents

1.	POLICY STATEMENT: WHY WE COMPLY	3
2.	WHO MUST COMPLY?	3
3.	DEFINITION: WHAT IS BRIBERY?	4
4.	WHAT IS NOT ACCEPTABLE.....	4
5.	GIFTS AND HOSPITALITY	4
6.	FACILITATION PAYMENTS AND KICKBACKS	5
7.	DONATIONS.....	6
8.	THIRD PARTIES.....	6
9.	RESPONSIBILITIES OF ASSOCIATES.....	6
10.	RECORD KEEPING	7
11.	RAISING A CONCERN OR COMPLAINT	7
12.	WHAT TO DO IF YOU ARE A VICTIM OF BRIBERY OR CORRUPTION	8
13.	PROTECTION.....	8
14.	TRAINING AND COMMUNICATION	8
15.	WHO IS RESPONSIBLE FOR THE POLICY?	9
16.	MONITORING AND REVIEW.....	9
17.	POTENTIAL RISK SCENARIOS – “RED FLAGS”	9
18.	EXAMPLES.....	10
19.	DOCUMENT HISTORY	13
20.	ANNUAL REVIEW HISTORY	13

1. POLICY STATEMENT: WHY WE COMPLY

It is our policy to conduct all our business in an honest and ethical manner. We adopt a zero-tolerance stance towards bribery and corruption and are committed to acting professionally, fairly, and with integrity in all our business dealings and relationships, wherever we operate. We are dedicated to implementing and enforcing effective systems to counter bribery. Our associates, as defined in Section 2 below, are strictly prohibited from engaging in any form of bribery or potential bribery. This includes a prohibition against both direct and indirect bribery, such as payments through third parties. Should any associate suspect or become aware of any potential bribery involving the Company, they are obligated to report their suspicions or awareness to the Company HR Head at Compliance@binaryglobal.com.

We take our legal responsibilities with the utmost seriousness and will uphold all laws relevant to countering bribery and corruption.

The purpose and objective of this policy for employee /vendor is to:

- Understand their obligation to act ethically and to behave with the highest level of personal and professional integrity;
- Always comply with Anti-Bribery and Anti-Corruption Applicable Laws referred to as "ABAC"
- Do not engage in any corrupt practice or behavior;
- Identify and report any bribery and corruption concern

The Company will conduct a periodic bribery and corruption risk assessment across its operations to understand the risks it faces in this area and ensure that it has adequate procedures to mitigate these risks. These risk assessments will be documented and periodically reviewed, and the findings reported to the appropriate committee of the Governance Body in accordance with applicable regulations.

2. WHO MUST COMPLY?

This policy applies to all individuals working at or for Binary Global Limited and its affiliates worldwide (collectively referred to as the "Company"), across all levels and grades.

This encompasses senior managers, officers, directors, employees (whether regular, fixed-term, or temporary), consultants, contractors, trainees, seconded staff, home-workers, casual workers, agency staff, volunteers, interns, agents, sponsors, or any other person associated with us, or any of our subsidiaries or their employees, regardless of location (hereinafter collectively referred to as "associates" in this policy).

For this policy's purposes, a 'third party' is defined as any individual or organization an associate might interact with during their engagement with the Company. This includes actual and potential clients, customers, suppliers, distributors, business contacts, agents, advisers, business associates (including rainmakers, etc.), and government and public bodies. This category also extends to their advisors, representatives, officials, politicians, and political parties

3. DEFINITION: WHAT IS BRIBERY?

Bribery is defined as:

- a) The offer, promise, or receipt of any gift, hospitality, loan, fee, reward, or other advantage to induce or reward behavior that is dishonest, illegal, or constitutes a breach of trust, duty, good faith, or impartiality in the performance of a person's functions or activities. This includes, but is not limited to, a person's public functions, activities in their employment, or otherwise in connection with a business; or
- b) The offer or promise of any gift, hospitality, loan, fee, reward, or other advantage to a public official intending to influence them in the performance of their public functions to obtain a business advantage.

Bribery encompasses not only direct financial or other benefits but also involves authorising or allowing an associate or a third party to engage in any of the acts described in points (a) and (b) above.

A non-exhaustive list of bribery examples is provided in Section 18 of this Policy, titled 'Examples'.

4. WHAT IS NOT ACCEPTABLE

It is not acceptable to:

- a) Give, promise to give, or offer a payment, gift, or hospitality with the intention of securing or awarding an improper business advantage.
- b) Give, promise to give, or offer a payment, gift, or hospitality to a government official, agent, or representative to facilitate, expedite, or reward any action or procedure.
- c) Accept payment from a third party when there is knowledge or suspicion that it is offered with the expectation of obtaining a business advantage in return.
- d) Induce another individual or associate to engage in any acts prohibited by this policy.
- e) Threaten or retaliate against another associate who has refused to commit a bribery offense or who has raised concerns under this policy.
- f) Give or accept any gift where such a gift is, or could reasonably be perceived to be, in contravention of this policy and/or applicable law.
- g) Engage in any activity that might lead to a violation of this policy

5. GIFTS AND HOSPITALITY

This policy does not prohibit standard business hospitality, provided it is reasonable, appropriate, modest, and aimed at corporate hospitality. Such hospitality is permissible if its purpose is to improve the company's image, present products and services, or establish cordial relations.

Gifts and Hospitality Guidelines:

- **Approval Requirement:** All normal business hospitality must be duly approved by the appropriate level of company management.
- **Intention Behind Hospitality:** Hospitality or entertainment must not be intended to improperly influence decision-making or objectivity. Associates should critically assess the purpose behind any hospitality or entertainment offered or received. Any attempt to make a recipient feel unduly obligated is unacceptable.
- **Perception of Influence:** Associates must avoid giving or receiving gifts that could be perceived as attempts to influence decision-making. Gifts of modest value, not exceeding **INR 5000** (Rupees Five Thousand Only) and in line with local business practices, may be acceptable on special occasions, provided they do not appear to improperly influence the recipient.

- **Prohibited Gifts:** Certain gifts, including those that are illegal, unethical, involve cash or equivalents, or could be seen as a bribe, are always unacceptable. This includes personal benefits such as invitations for family to join on business trips or extended trips at the company's expense.
- **Permissible Promotional Gifts:** Offering modest promotional materials, such as branded office supplies, is permitted. Soliciting gifts of any kind using one's company position is not acceptable, though unsolicited gifts of minimal value may be accepted if given unconditionally.
- **Personal Payment:** Associates are not allowed to use personal funds to circumvent this policy by paying for gifts or hospitality.

In cultures or countries where refusing a gift may insult or negatively impact business relationships, such gifts, if beyond moderate value, must be reported using ANNEXURE "A" to the reporting manager for a decision on retention or return. Should there be uncertainty, the relevant Human Resource (HR) contact should be consulted for guidance.

Risk and Compliance:

Gifts and hospitality can pose risks if used unethically. The company will develop procedures for giving and receiving gifts and hospitality to ensure compliance with this ABAC Policy and the Code of Ethical Business Conduct. Associates are required to follow these procedures diligently.

All employees receiving gifts on behalf of company should self-declare the details in prescribed format as per Annexure – "A"

6. FACILITATION PAYMENTS AND KICKBACKS

The Company strictly prohibits the making or accepting of facilitation payments and kickbacks in any form. Facilitation payments, often small and unofficial, are made to secure or expedite routine government actions by an official. Kickbacks, conversely, are payments made in return for a business favor or advantage. All associates are required to steer clear of any activities that could lead to, or suggest, the making or acceptance of such payments.

Before making any payment on the Company's behalf, associates must scrutinize the purpose of the payment and assess whether the amount is proportionate to the goods or services rendered. Associates are instructed to reject any requests for facilitation payments. However, in situations where refusal might result in personal harm, detention, or endanger life, the following steps should be taken:

- Attempt to refuse the payment if safely possible.
- If making the payment is unavoidable due to immediate risk of harm, detention, or threat to life, ensure a receipt for the payment is obtained.
- Report the incident and payment details to the Company HR Head at Compliance@binaryglobal.com as soon as it is safe to do so.

This directive aims to uphold the highest ethical standards and legal compliance in all company activities, reflecting our zero-tolerance policy towards bribery and corruption. Associates are reminded that adherence to this policy is mandatory, and any deviations or suspected breaches must be reported immediately.

7. DONATIONS

It is imperative that no donation be made that could be construed as a breach of any applicable law or any other section of this policy.

To ensure adherence to these principles:

- All proposed donations must receive prior approval from the Company HR Head.
- The Company is dedicated to maintaining accurate and transparent records of all donations.

This procedure ensures that our philanthropy is conducted responsibly, reflecting our commitment to ethical business practices and legal compliance. Associates are reminded of the importance of adhering to this policy and are encouraged to report any concerns or violations to the Company HR Head at Compliance@binaryglobal.com.

8. THIRD PARTIES

Third parties can expose the Company to significant risks if they engage in unethical business practices. To mitigate these risks, the Company is committed to developing and implementing robust procedures for conducting risk-based due diligence on all third parties. This due diligence process is designed to identify potential risks and implement appropriate measures to address any issues uncovered, ensuring compliance with applicable anti-corruption laws.

Key elements of our approach include:

- **Risk Assessment:** Conducting a thorough risk assessment of third parties to understand the nature of the risk they might pose.
- **Due Diligence Procedures:** Developing detailed procedures for due diligence that are proportionate to the level of risk identified.
- **Addressing Identified Risks:** Implementing appropriate steps to mitigate any risks identified during the due diligence process.
- **Ongoing Monitoring:** Establishing mechanisms for the continuous monitoring of third-party relationships to detect any changes in risk levels.

Associates are required to rigorously adhere to these procedures once established under this policy. It is each associate's responsibility to ensure that our business practices remain transparent, ethical, and compliant with all relevant laws and regulations.

By diligently following these guidelines, we can safeguard our company's integrity and maintain our commitment to ethical business practices.

9. RESPONSIBILITIES OF ASSOCIATES

All associates must thoroughly read, understand, and comply with the terms and conditions of this policy.

The responsibility for preventing, detecting, and reporting corruption lies with everyone associated with our company, including employees, contractors, and any individuals acting under our direction. It is imperative that all associates refrain from any actions that could lead to or imply a violation of this policy.

If associates believe or have reason to suspect a breach of this policy has occurred or may occur in the future, they must immediately notify their reporting manager or consult with an appropriate member of the Human Resources (HR) team or notify on email at HR@binaryglobal.com. This is particularly important if an associate is offered any form of inducement by a customer or potential customer seeking to gain a business advantage with Binary Global Limited, or if it is suggested that a gift or payment is required to secure business.

Section 17 of this policy outlines 'red flags' that may suggest corruption. It is crucial to recognize that failing to report a suspected breach of this policy constitutes a breach.

Associates found in violation of this policy will be subject to disciplinary action, up to and including dismissal for gross misconduct. Furthermore, the Company reserves the right to terminate its contractual relationship with any associates or associated persons found in breach of this policy's terms and conditions.

10. RECORD KEEPING

The Company commits to maintaining accurate financial records and implementing robust internal controls that clearly document the business rationale for making payments to and receiving payments from third parties.

It is imperative that associates:

- **Record Keeping:** Declare and maintain a written record of all hospitality or gifts that are either accepted or offered. These records are subject to review by management and/or an appropriate member of the Company's Human Resources (HR) team.
- **Expense Claims:** Submit all expense claims related to hospitality, gifts, or expenses incurred towards third parties in strict accordance with the Company's applicable policies. These claims must explicitly record the purpose of the expenditure and adhere to this policy's terms and conditions.
- **Accuracy and Completeness:** Ensure that all accounts, invoices, memoranda, and other documents and records related to dealings with third parties, such as clients, suppliers, and business contacts, are prepared and maintained with utmost accuracy and completeness.
- **Prohibition of Off-Book Records:** Strictly prohibit the maintenance of any "off-book" records used to facilitate or conceal improper payments.

By adhering to these guidelines, associates contribute to the Company's commitment to ethical business practices and compliance with applicable laws. The integrity of our financial transactions and record-keeping is crucial for preserving the trust of our clients, partners, and the public.

11. RAISING A CONCERN OR COMPLAINT

Associates are strongly encouraged to voice concerns about any issues or suspicions of malpractice as soon as they arise. If there is uncertainty about whether a specific action constitutes bribery or corruption, associates are urged to seek guidance by discussing the issue with their reporting manager or consulting with a designated member of the Compliance Function Team or Human Resources (HR) team.

To report concerns, associates should follow the detailed procedure outlined in the Whistleblower Policy. This policy is designed to protect those who report malpractices in good faith and is readily accessible on the HRMS Portal.

Prompt reporting can prevent potential violations of this policy and contribute to maintaining the integrity and ethical standards of our company. We are committed to ensuring that all concerns are addressed appropriately and that no adverse action will be taken against anyone for reporting in good faith.

12. WHAT TO DO IF YOU ARE A VICTIM OF BRIBERY OR CORRUPTION

If you are offered a bribe by a third party, or if you are asked to make a bribe, or if you suspect that you may be asked to commit such a violation, or if you believe that you or anyone else is a victim of any form of unlawful activity, you must comply with this policy.

13. PROTECTION

The Company actively encourages openness and will support any associate who, in good faith, refuses to engage in bribery or reports concerns about misconduct, even if those concerns are later found to be unfounded.

We are dedicated to ensuring that no associate suffers detrimental treatment because of:

- Refusing to participate in corrupt activities; or
- Reporting a concern under this policy in good faith.

Detrimental treatment can include dismissal, disciplinary action, threats, or other unfavorable treatments associated with raising a concern.

If you believe you have been subject to any form of detrimental treatment for either refusing to engage in corruption or for reporting a concern in good faith, you are urged to report this immediately to your reporting manager or to a member of the Human Resources (HR) team. Should the issue remain unresolved, and you are an associate, you are encouraged to escalate the matter in accordance with the procedures outlined in the Whistleblower Policy, accessible on the HRMS Portal.

The Company is committed to protecting those who stand up against corruption or unethical practices, ensuring they do not face retaliation or adverse consequences for their actions.

14. TRAINING AND COMMUNICATION

Dissemination of this policy to new joiners will be conducted as part of their induction process. Additionally, this policy will be distributed to all existing associates to ensure comprehensive awareness and understanding across the Company.

Should you have questions or need more clarification regarding this policy, contact your reporting manager directly.

It is imperative that the Company's zero-tolerance stance on bribery and corruption is clearly communicated to all agents, suppliers, contractors, and business partners at the beginning of our business relationship with them and reinforced as necessary over time. To facilitate this, a copy of this policy will be provided to all third parties at the start of our business engagement, wherever feasible, to ensure they are fully informed of our ethical standards and expectations.

This practice underscores our commitment to maintaining the highest standards of integrity and ethical conduct in all our business dealings.

15. WHO IS RESPONSIBLE FOR THE POLICY?

The Compliance Function Team bears the ultimate responsibility for ensuring that this policy aligns with our legal and ethical obligations and that all individuals under our control adhere to it.

The Head of the Human Resources Department is tasked with the primary day-to-day responsibility for the policy's implementation, ensuring its principles and directives are effectively communicated and applied across the organization.

Furthermore, management at all levels is charged with the crucial role of ensuring that their direct reports are fully informed about this policy. This includes making sure that all relevant personnel understand the policy's significance and, where necessary and appropriate, receive adequate and regular training to uphold the standards it sets forth.

This structure of responsibility ensures a comprehensive approach to maintaining the highest standards of integrity and compliance throughout the Company.

16. MONITORING AND REVIEW

The Head of the Human Resources Department is entrusted with the responsibility of monitoring the effectiveness of this policy, regularly reviewing its implementation to ensure it remains suitable, adequate, and effective in meeting our objectives against bribery and corruption. Identified improvements will be promptly integrated into the policy.

The successful enforcement of this policy relies on the active participation of all associates. It is crucial that everyone uses this policy as a guide to report any suspicions of misconduct or unethical behavior.

We welcome and encourage feedback from our associates on this policy. Suggestions for enhancements or any comments and queries are to be directed to the Head of HR Operations. This collaborative approach aims to refine and strengthen our policy continually.

Please note, this policy does not constitute part of an associate's contract of employment and may be updated at the discretion of the Company to reflect changes in our legal obligations or ethical commitments.

17. POTENTIAL RISK SCENARIOS – "RED FLAGS"

This section outlines a series of potential red flags that may be encountered in business dealings. While this list is not exhaustive, it serves as a guide to help identify situations that may pose a risk of bribery or corruption. Associates are urged to remain vigilant and report any such red flags in accordance with the Whistleblower Policy.

Potential Red Flags Include:

- Awareness of a third party's involvement in or accusations of improper business practices.
- Knowledge of a third party's reputation for paying bribes, demanding bribes, or maintaining "special relationships" with foreign government officials.
- A third party's insistence on receiving a commission or fee prior to signing a contract or executing a government function.

- A request from a third party for cash payments, refusal to formalize fee agreements, or failure to provide invoices for payments.
- Requests for payments to be made to a different country or geographic location than the third party's business operations.
- Unexpected requests from a third party for additional fees or commissions to "facilitate" services.
- Demands for lavish entertainment or gifts as a precondition for business negotiations or service provision.
- A third party's request for payments to ignore potential legal violations.
- Requests for personal favors, such as employment for friends or relatives, in exchange for business advantages.
- Receipt of non-standard or customized invoices from a third party.
- Insistence by a third party on using side letters or refusing to document agreed terms in writing.
- Invoices for commission or fees that appear disproportionate to the services provided.
- A third party's insistence on using an agent, intermediary, consultant, distributor, or supplier unfamiliar to the Company.
- Offers of unusually generous gifts or lavish hospitality from a third party.
- Should you encounter any of these red flags, or any other suspicious activity, report them immediately by following the procedures outlined in the Whistleblower Policy.

18. EXAMPLES

This section outlines specific examples of bribery, serving to clarify prohibited practices under this policy. These examples are illustrative and not exhaustive, aiming to provide guidance on what constitutes bribery.

Offering a Bribe

Example: If you offer a potential client tickets to a major sporting event as a condition for them to do business with us, this constitutes a bribe. Such an action is considered an offense because it seeks to gain a commercial and contractual advantage through improper means. Not only could you be held liable for attempting to bribe the potential client, but the Company could also face legal consequences for attempting to secure business improperly. Additionally, it would be considered an offense for the potential client to accept this offer.

Receiving a Bribe

Example: A situation where a supplier offers employment to your nephew, with the expectation that you will influence our organization to continue business relations with them, is an instance of receiving a bribe. This act is illegal for the supplier to propose and for you to accept, as it aims to secure an improper personal benefit through your position within the organization.

Bribing a Foreign Official

Example: Arranging for the company to make an additional payment to a foreign official to expedite an administrative process, such as customs clearance for computer hardware, is a bribe. The mere offer to make this payment, intended to obtain a business advantage, constitutes the offense of bribing a foreign public official. This act implicates both the individual making the offer and potentially the Company itself if found to be complicit in seeking to gain business through unlawful means.

ANNEXURE A**Employee Self Declaration Certificate****Employee Information**

Employee Name: _____

Employee ID: _____

Department: _____

Designation: _____

Gift Information

Date of Receipt: _____

Description of Gift: _____

Estimated Value: _____

Name of Client/Vendor: _____

Client/Vendor Contact Information: _____

Declaration

I, _____, hereby declare that I have received the above-mentioned gift from _____. I confirm that:

- The gift has been reported to and approved by my immediate supervisor.
 - The receipt of this gift will not influence or affect my professional judgment, decisions, or actions in my role within Binary Global Limited.
 - I understand and comply with Binary Global Limited's Anti – Bribery and Anti – Corruption Policy.
 - I acknowledge that any violation of company policies may result in disciplinary action.
-

Employee Signature: _____

Approved By

Supervisor Name:

Supervisor Signature:

Date:

I hereby declare that I have thoroughly read and comprehended the entire policy document provided to me. I acknowledge that it is my responsibility to abide by all the rules, regulations, and guidelines outlined therein. By affixing my electronic or physical signature below, I confirm my understanding and commitment to adhere to the policies stated.

I am aware that failure to adhere to these policies may result in disciplinary action, up to and including termination of employment.

Employee Name :- Sukhdev Singh

Employee Code :- 201499

Designation :- AI Engineer

Department :- Application Delivery

Employee Signature :- *Sukhdev Singh*

Sign Date :-

19. DOCUMENT HISTORY

Version	Date	Author (function)	Reviewed by	Approved by	Nature of changes
1.0	22 August 2023	HR	CEO	CEO	Initial Release
1.1	10 April 2024	Compliance Function Team	Governance Body	Governance Body	Section 15: Change of responsibility
1.2	05 th July 2024	Compliance Function Team	Governance Body	Governance Body	Changes as per ISO 37001 Added Self Declaration

20. ANNUAL REVIEW HISTORY

Annual Review Conducted On	Version Reviewed	Is Change Required (Y/N)	Document Uploaded in HRMS	Remarks
08 April 2024	1.0	Yes	10 April 2024	Annual Review Conducted